

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Felipe Escobar vs. McDonald's Corporation**
Superior Court Case No. 25CECG02612

Hearing Date: September 23, 2026 (Dept. 502)

Motions: By Defendant J&K Restaurants, Inc. to Strike Plaintiffs' First Amended Complaint and to Dismiss Plaintiffs' Action

Tentative Ruling:

To grant defendant's motions to strike plaintiffs' first amended complaint and to dismiss plaintiffs' action, with prejudice. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment dismissing this action.

Explanation:

Plaintiffs Felipe Escobar and Monica Escobar (Plaintiffs) initiated this action on June 11, 2025, by filing a form complaint against defendant McDonalds Corporation. J&K Restaurants, Inc. (Defendant) demurred to the complaint, which has no facts to support Plaintiffs' claim for compensatory damages of \$60,000. In its supporting meet-and-confer declaration, Defendant stated it had informed Plaintiffs that the form complaint lacked the required statement of facts, and the only named defendant, McDonalds Corporation, did not own the restaurant located at 3110 East Jensen Ave, Fresno, California, nor did it employ any person there.¹

The court sustained Defendant's demurrer with leave to amend. The court gave Plaintiffs 10 days from its January 7, 2026 order to file a first amended complaint, and directed that "[n]ew language must be set in **boldface** type." Plaintiffs failed to file a first amended complaint by the January 17, 2026 deadline. Instead, Plaintiffs filed their first amended complaint (FAC) on January 21, 2026. Plaintiffs did not seek leave of court to file an amended complaint, nor did they request an extension of time. In addition, Plaintiffs failed to serve the FAC on Defendant, which discovered the filing by independently reviewing the court's docket. On April 16, 2026, Defendant filed the subject motions to strike the FAC and to dismiss Plaintiffs' action, with prejudice.

Defendant cites *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603 (*Leader*), where the court explained the effect of a plaintiff's failure to file an amended complaint within the time specified after a court sustains a demurrer as follows:

¹ The form complaint makes no mention of a restaurant at any location.

[P]laintiffs' failure to file an amended complaint within the time allowed by the court had a number of immediate statutory ramifications

First, plaintiffs no longer had an unfettered right to file an amended complaint. A litigant does not have a positive right to amend his pleading after a demurrer thereto has been sustained. His leave to amend afterward is always of grace, not of right. Under [Code of Civil Procedure] section 472, a plaintiff may only amend as a matter of course before an answer or demurrer is filed or before trial of the issue of law raised in the demurrer. At that point the plaintiff's right to amend as a matter of course is gone. After expiration of the time in which a pleading can be amended as a matter of course, the pleading can only be amended by obtaining the permission of the court.

Second, to obtain the court's permission, plaintiffs were required to file a noticed motion for leave. . . . [¶] Third, plaintiffs' failure to file an amended complaint within the time allowed by the court subjected any subsequently filed pleading to a motion to strike, either by defendants or on the court's own motion. We have expressly recognized a trial court's authority to strike pleadings not filed in conformity with its prior ruling. . . . Indeed, by virtue of its *inherent* power to prevent abuse of its processes a trial court may strike an amended complaint filed in disregard of established procedural processes, and may strike an amended pleading because no request for permission to amend was sought.

Finally, plaintiffs' failure to file an amended complaint within the time specified subjected their entire action to dismissal in the court's discretion under [Code of Civil Procedure] section 581, subdivision (f)(2). Under that statute, the court may dismiss the complaint when: "after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (§ 581, subd. (f)(2).)

(*Leader, supra*, 89 Cal.App.4th at pp. 612–614, italics original, case citations and internal quotation marks omitted.)

Here, Plaintiffs did not amend the complaint within the time allowed by the court, nor did they request an extension or obtain leave of court for their late filing. Furthermore, Plaintiffs failed to correct any of the pleading deficiencies noted in the court's ruling on Defendant's demurrer. In the FAC, Plaintiffs merely delete the second page of the original complaint, but add no facts whatsoever—not even the nature of Plaintiffs' injuries or the date, time, place, or cause of the injuries. Nor do Plaintiffs file any opposition to Defendant's motions.

The court empathizes with the difficulties Plaintiffs, as self-represented litigants, may face in navigating the rules of civil procedure. However, "[t]he same burdens are imposed uniformly and equally on all appellants, and self-represented parties are ' "held to the same restrictive procedural rules as an attorney." ' " (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 344–345; see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985 ["the

rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation"].) Therefore, the court grants Defendants' motions to strike the FAC and to dismiss Plaintiffs' action, with prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-21-26
(Judge's initials) (Date)